

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 4268

By: Johns, Waldron, and
Rosecrants of the House

and

Pugh of the Senate

COMMITTEE SUBSTITUTE

[education - Teacher Effectiveness and Excellence
Act - growth-based Teacher Compensation Program -
pilot program - eligibility - National Board
Certification Bonus Program - Commission for
Educational Quality and Accountability - directing
reporting of certain data - noncodification -
codification - effective date -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Teacher
Effectiveness and Excellence Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 6-213 of Title 70, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. "Eligible teacher" means a full-time certified teacher in
2 grades four through eight teaching English language arts and
3 mathematics;

4 2. "Participating school" means a public or charter elementary
5 or middle school serving students in grades four through eight;

6 3. "Recognized teacher" means an eligible teacher whose
7 students demonstrate student growth at or above an established
8 growth threshold; and

9 4. "Student academic growth" means annual student progress as
10 measured by the Oklahoma School Testing Program.

11 B. There is hereby established the Growth-Based Teacher
12 Compensation Program to be administered by the State Board of
13 Education. Beginning with the 2026-2027 school year, the pilot
14 program shall operate for a minimum of three (3) consecutive school
15 years.

16 C. To be eligible to participate in the program, a teacher
17 shall be a full-time certified teacher in grades four through eight
18 teaching English language arts and mathematics at a participating
19 school. The pilot program shall consist of one thousand five
20 hundred (1,500) teachers representing approximately fifteen percent
21 (15%) of the highest-performing teachers serving grades four through
22 eight in eligible schools in this state. The State Board of
23 Education shall establish criteria for the selection of recognized
24 teachers to participate in the pilot program.

1 D. Recognized teachers participating in the pilot program shall
2 receive annual performance-based compensation under the program as
3 follows:

4 1. Compensation shall be based solely on measurable student
5 academic growth. Such growth shall be calculated using a value-
6 added model based on a rolling two-year period of statewide
7 assessment data; provided, however, during the first year of program
8 implementation, compensation shall be calculated using the previous
9 and current years of academic growth data;

10 2. The State Department of Education shall place participating
11 recognized teachers into three performance tiers based on their
12 statewide student growth percentiles as determined by student growth
13 on Oklahoma School Testing Program assessment data;

14 3. The percentile distribution shall be adjusted as necessary
15 to ensure that total annual expenditures do not exceed available
16 funding for the program;

17 4. Participating recognized teachers shall be identified using
18 equivalent performance tiers which may include Tier 1 for the
19 ninety-fifth percentile and above, Tier 2 for the ninetieth through
20 ninety-fourth percentiles, and Tier 3 for the eighty-fifth through
21 eighty-ninth percentiles; and

22 5. Awards shall be paid from the Teacher Empowerment Revolving
23 Fund created in Section 6-190.2 of Title 70 of the Oklahoma Statutes
24 by the State Department of Education as supplemental compensation.

1 The performance-based compensation shall not be included in the
2 calculation of the teacher's salary for purposes of meeting the
3 district or statutory minimum salary schedule or for purposes of
4 compensating Teachers' Retirement System of Oklahoma contributions
5 or benefits. No participating school shall be liable for payment of
6 the performance-based compensation pursuant to this section.

7 E. The State Board of Education shall promulgate rules to
8 implement the Growth-Based Teacher Compensation Program in
9 accordance with this section.

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 6-214 of Title 70, unless there
12 is created a duplication in numbering, reads as follows:

13 A. As used in this section:

14 1. "Eligible teacher" means any certified teacher in any
15 subject area or grade level who is employed by a public school
16 district in this state; and

17 2. "National Board certification" means certification granted
18 by the National Board for Professional Teaching Standards to a
19 teacher who has successfully completed all requirements for initial
20 certification or renewal, as applicable.

21 B. There is hereby established a National Board Certification
22 Bonus Program for eligible teachers who hold or attain National
23 Board certification.

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1 C. An eligible teacher who attains, or has attained and
2 continues to hold, National Board certification on or after the
3 effective date of this act shall receive an annual bonus of Five
4 Thousand Dollars (\$5,000.00) from the State Board of Education for a
5 five-year period subject to his or her continued employment with a
6 public school district in this state and maintenance of National
7 Board certification.

8 D. To begin receiving bonus payments, an eligible teacher shall
9 submit proof of his or her National Board certification to the State
10 Department of Education to receive his or her first annual bonus
11 payment which shall be paid no later than January 31 each year.
12 Bonuses shall be paid from the Teacher Empowerment Revolving Fund
13 created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by
14 the State Department of Education as supplemental compensation. The
15 bonus shall not be included in the calculation of the teacher's
16 salary for purposes of meeting the district or statutory minimum
17 salary schedule or for purposes of compensating Teachers' Retirement
18 System of Oklahoma contributions or benefits. No school district
19 shall be liable for payment of bonuses pursuant to this section.

20 E. The State Board of Education shall promulgate rules to
21 implement the National Board Certification Bonus Program in
22 accordance with this section.
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1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 6-215 of Title 70, unless there
3 is created a duplication in numbering, reads as follows:

4 A. 1. The Office of Educational Quality and Accountability
5 shall contract with an independent evaluator to conduct a rigorous
6 evaluation and report of both:

- 7 a. Growth-Based Teacher Compensation Program
8 implementation fidelity pursuant to the provisions of
9 Section 2 of this act, and
- 10 b. the bonus effects on student achievement and teacher
11 workforce outcomes resulting from implementation of
12 the Growth-Based Teacher Compensation Program pursuant
13 to Section 2 of this act and the National Board
14 certification bonus pursuant to Section 3 of this act.

15 2. The evaluation created by an independent evaluator shall
16 include:

- 17 a. comparison groups,
- 18 b. longitudinal student growth analysis,
- 19 c. workforce outcomes including retention and
20 recruitment, and
- 21 d. the number of teachers who have received a bonus for
22 obtaining National Board certification as provided for
23 in Section 3 of this act.

1 B. 1. Beginning January 1, 2028, the State Department of
2 Education shall electronically submit the results of the evaluation
3 and report to:

- 4 a. the Governor,
- 5 b. the President Pro Tempore of the Senate, and
- 6 c. the Speaker of the House of Representatives.

7 2. The evaluation shall include:

- 8 a. the number of participating teachers and schools,
- 9 b. growth distribution results,
- 10 c. compensation payments,
- 11 d. early-grade bonus distributions, and
- 12 e. findings from the independent evaluation conducted
13 pursuant to subsection A of this section.

14 SECTION 5. AMENDATORY 70 O.S. 2021, Section 3-116.2, is
15 amended to read as follows:

16 Section 3-116.2. A. Effective January 1, 2013, there is hereby
17 created the Commission for Educational Quality and Accountability.

18 The membership of the Commission shall consist of:

19 1. The Secretary of Education, who shall serve as the chair of
20 the Commission;

21 2. One member appointed by the Governor, with the advice and
22 consent of the Senate, representing business and industry from an
23 Oklahoma employer with five hundred (500) or fewer employees;
24

1 3. One member, appointed by the Governor, with the advice and
2 consent of the Senate, who is a parent of a child enrolled in a
3 public school in this state;

4 4. One member, appointed by the Governor, with the advice and
5 consent of the Senate, who is an administrator of a public school
6 district;

7 5. One member, appointed by the Governor, with the advice and
8 consent of the Senate, who shall represent higher education teacher
9 education programs;

10 6. One member, appointed by the Governor, with the advice and
11 consent of the Senate, who shall be an active classroom teacher in
12 kindergarten through grade six; and

13 7. One member, appointed by the Governor, with the advice and
14 consent of the Senate, who shall be an active classroom teacher in
15 grades seven through twelve.

16 Upon the effective date of this act, the terms of the six
17 appointed members shall be staggered such that the terms of no more
18 than two members end in the same year. The terms of the initial
19 appointed members shall commence on ~~January 1, 2013~~ July 1, 2028,
20 and shall end ~~on June 30, 2014~~ in accordance with designations by
21 the Governor, with the Governor designating two members whose terms
22 shall end on June 30, 2030, two members whose terms shall end on
23 June 30, 2031, and two members whose terms shall end on June 30,
24 2032. ~~The~~ Thereafter, the Governor shall appoint two members at a

1 time, and the terms of subsequently appointed members shall commence
2 on July 1 of each year following the election of the Governor
3 thereafter and shall be for four (4) years. If a vacancy occurs,
4 the vacancy shall be filled for the unexpired term in the same
5 manner as the office was previously filled.

6 B. A quorum of the Commission, which shall consist of four
7 members, shall be present in order for the Commission to transact
8 any business. Members shall be reimbursed for travel in the
9 performance of their official duties in accordance with the State
10 Travel Reimbursement Act.

11 C. Prior to July 1, 2013, the Commission shall meet to organize
12 and plan for the assumption of the powers and duties of the
13 Education Oversight Board and the Oklahoma Commission for Teacher
14 Preparation.

15 D. Beginning July 1, 2013, the Commission shall assume the
16 following duties:

17 1. Oversee implementation of the provisions of Enrolled House
18 Bill No. 1017 of the 1st Extraordinary Session of the 42nd Oklahoma
19 Legislature;

20 2. Implementation of the provisions of the Oklahoma Teacher
21 Preparation Act as provided for in law;

22 3. Make recommendations to the Governor and Legislature on
23 methods to achieve an aligned, seamless system from preschool
24 through postsecondary education; and

1 4. Set performance levels and corresponding cut scores pursuant
2 to the Oklahoma School Testing Program Act and as provided for in
3 Section 1210.541 of ~~Title 70 of the Oklahoma Statutes~~ this title.

4 E. Beginning July 1, 2013, the Commission shall govern the
5 operation of the Office of Educational Quality and Accountability
6 created in Section 3-117 of ~~Title 70 of the Oklahoma Statutes~~ this
7 title.

8 F. 1. Beginning July 1, 2014, the Commission shall assume the
9 following duties of the Oklahoma Commission for Teacher Preparation
10 according to the provisions of the Oklahoma Teacher Preparation Act:

- 11 a. approval and accreditation of teacher education
12 programs, and
13 b. assessment of candidates for licensure and
14 certification.

15 2. To implement the provisions of this subsection the
16 Commission shall:

- 17 a. include the State Board of Education in the process,
18 b. review and assess approved, accredited, and new
19 programs of teacher education, and
20 c. encourage studies and research designed to improve
21 teacher education.

22 SECTION 6. AMENDATORY 70 O.S. 2021, Section 3-116.5, is
23 amended to read as follows:
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1 Section 3-116.5. A. On or before ~~October 31, 2021~~ November 1,
2 2027, and every three (3) years thereafter, the Commission for
3 Educational Quality and Accountability shall ~~issue~~ electronically
4 submit a report to the Speaker of the ~~Oklahoma~~ House of
5 Representatives, the President Pro Tempore of the ~~Oklahoma State~~
6 Senate, and the Governor detailing factors in the public education
7 system of the state that contribute to improvements in the:

8 1. Common education system, including, but not limited to, high
9 school graduation rates and college and career assessment scores;

10 2. Higher education and career and technology education
11 systems, including, but not limited to, timely graduation rates and
12 reduced remediation rates; and

13 3. State workforce, including, but not limited to, career
14 readiness and the ability for new graduates to find in-state
15 employment.

16 B. If the Commission finds there is insufficient information
17 available to fulfill any of the report objectives specified in
18 subsection A of this section, the report shall also contain
19 recommendations on ways to address information gaps between state
20 entities, such as the State Department of Education, the Oklahoma
21 Department of Career and Technology Education, and the Oklahoma
22 State Regents for Higher Education.

23 C. The Commission may contract with a private consultant or
24 consultants to assist with the development of the report.

1 D. The Commission may utilize any funds received including, but
2 not limited to, any state or federal funds, grants, or private
3 donations to assist with the development of the report or to assist
4 the Commission with its general purposes or duties prescribed by
5 statute.

6 SECTION 7. AMENDATORY 70 O.S. 2021, Section 6-211, is
7 amended to read as follows:

8 Section 6-211. The Commission for Educational Quality and
9 Accountability, in cooperation with the State Board of Education ~~in~~
10 ~~cooperation with the Commission for Educational Quality and~~
11 ~~Accountability,~~ the Oklahoma State Regents for Higher Education, and
12 institutions of higher education, shall conduct an educator supply-
13 and-demand study every three (3) years. The study shall identify
14 areas of teacher shortage and make recommendations for addressing
15 the areas of most critical need. The ~~Board~~ Commission shall
16 electronically submit a report outlining the findings to the
17 Governor, the Speaker of the House of Representatives, and the
18 President Pro Tempore of the Senate.

19 SECTION 8. AMENDATORY 70 O.S. 2021, Section 1210.531, is
20 amended to read as follows:

21 Section 1210.531. A. The Commission for Educational Quality
22 and Accountability shall establish an Oklahoma Educational
23 Indicators Program. The purpose of the ~~Program~~ program shall be to
24 develop and implement a system of measures whereby the performance

1 of public schools and school districts is assessed and reported
2 without undue reliance upon any single type of indicator, and
3 whereby the public, including students and parents, may be made
4 aware of the proper meaning and use of any tests administered under
5 the Oklahoma School Testing Program Act, relative accomplishments of
6 the public schools, and of progress being achieved. The Commission
7 shall involve representatives of school teachers and of school
8 administrators in the development of the ~~Program~~ program. The
9 ~~Program~~ program shall be so designed that use of standardized
10 definitions and measures and opportunities for coordination with
11 national reports, including those of the National Assessment of
12 Educational Progress, are maximized.

13 B. The Oklahoma Educational Indicators Program shall present
14 information for comparisons of graduation rates, dropout rates,
15 pupil-teacher ratios, student enrollment gain and loss rates, and
16 test results in the contexts of socioeconomic status and the
17 finances of school districts. Information shall be provided
18 individually for all public school sites and school districts in a
19 format that facilitates comparisons. As necessary data become
20 available, comparisons shall also be provided individually for all
21 schools and school districts on a historical basis. Reports of all
22 tests administered pursuant to the Oklahoma School Testing Program
23 Act shall be a part of the Oklahoma Educational Indicators Program
24 and shall be provided for each grade and each test subject or set of

1 competencies. Test results for students enrolled in Internet-based
2 courses, including regularly enrolled and alternative education
3 students, shall be disaggregated and reported. The Commission for
4 Educational Quality and Accountability shall seek to develop and
5 incorporate additional indicators of comparative standing and
6 accomplishment.

7 C. Additionally, the Commission for Educational Quality and
8 Accountability, with the cooperation of the State Department of
9 Education, the Oklahoma State Regents for Higher Education, and the
10 State Board of Career and Technology Education, shall develop
11 procedures for obtaining and reporting data to the high schools and
12 ~~to~~ the general public regarding the performance of each high
13 school's graduates in ~~Oklahoma's~~ institutions of higher education in
14 this state and in postsecondary vocational-technical education. The
15 Commission shall include workforce outcomes of high school graduates
16 including postsecondary enrollment, credential attainment,
17 employment, and earnings information as such data becomes available.

18 The Commission for Educational Quality and Accountability shall
19 include such data in the report of the Oklahoma Educational
20 Indicators Program.

21 D. By February 1 of each year the Commission for Educational
22 Quality and Accountability shall publish:
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1 1. A summary report to the people and the Legislature ~~of~~
2 ~~Oklahoma~~ of the information provided by the Oklahoma Educational
3 Indicators Program; and

4 2. ~~State~~ State-, ~~district~~ district-, and ~~site-level~~ site-level
5 reports which shall include the percentage of students who perform
6 at the various levels on the tests required by the Oklahoma State
7 Testing Program.

8 Immediately following the publication of the reports required in
9 this subsection each year, all data gathered pursuant to the
10 Oklahoma Educational Indicators Program shall be made available for
11 public inspection at the Office of Educational Quality and
12 Accountability. The confidentiality of individual student records
13 shall be preserved as required by law.

14 E. In order to carry out the provisions of this section, the
15 Commission for Educational Quality and Accountability shall be
16 provided all data and reports necessary to develop and produce the
17 Oklahoma Educational Indicators Program reports within thirty (30)
18 days of the necessary data becoming available. Such data shall be
19 provided directly to the Commission by the State Department of
20 Education, the Oklahoma State Regents for Higher Education, the
21 State Board of Career and Technology Education, the Office of
22 Management and Enterprise Services, the Oklahoma Employment Security
23 Commission, and any state contractor or assessment vendor that
24 maintains or produces necessary data.

1 F. 1. The State Board of Education shall ensure that any
2 contracts with assessment vendors include a requirement that the
3 vendor transmit assessment results and related data files necessary
4 for the Oklahoma Educational Indicators Program directly to the
5 Commission for Educational Quality and Accountability at the same
6 time such results are transmitted to the State Department of
7 Education.

8 2. Data required by this subsection shall be provided to the
9 Commission without the need for a separate data-sharing agreement
10 with related state agencies and shall be subject to the Oklahoma
11 Open Records Act; provided, however, that the confidentiality of
12 individual student records shall be preserved as required by state
13 and federal law.

14 3. The Commission may contract with an independent third party
15 to receive, process, and report data submitted pursuant to this
16 subsection and may receive and expend federal or private grant funds
17 to carry out its duties pursuant to this section.

18 SECTION 9. This act shall become effective July 1, 2026.

19 SECTION 10. It being immediately necessary for the preservation
20 of the public peace, health, or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

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24 60-2-3853

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